CONTRACTOR WHS REQUIREMENTS MEDIUM RISK WORK

ADOPTED		REFERENCE	**2.0**
EMT		REVIEW DATE	**May 2021**
DATE ADOPTED:	28 May 2019	FILE NUMBER	**WHS702**

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1 PURPOSE

To outline the standard of work health and safety (WHS) management and behaviour required of Contractors undertaking work for or on behalf of Mid-Western Regional Council (Council).

WHS provisions specified within the document are a mandatory part of the tender process. Tender applications that do not meet the requirements of this document will not be considered.

2 SCOPE

The requirements within this document apply to all Contractors submitting a tender response or quotation for Medium Risk Work.

3 EVALUATION

WHS information provided as part of the tender process will be evaluated for adequacy. After submissions are evaluated, Council shall provide feedback to Contractors. Additional information may be requested to assist Council in the evaluation process. Contractors must submit all required information within the timeframe specified on the Request for Tender (RFT) or Request for Quote (RFQ) information.

Council may provide assistance, upon request, in the development of WHS risk management strategies for those that have not been able to provide sufficient evidence. Requests for such assistance should be made to Council's WHS Team on (02) 6378 2850.

4 RESPONSIBILITIES

4.1 Contractor

Contractors must understand their obligations under the WHS Act 2011 and WHS Regulation 2017. Specifically, Contractors must:

- Ensure the service provided including plant, equipment and materials are safe and without risk to the health and safety of persons exposed to the work being undertaken.
- Ensure its workers are adequately qualified for the work being undertaken, and can provide evidence of competencies upon request.
- Provide suitable amenities for the welfare of their workers.
- Have risk management framework in place to identify, assess, control and monitor risks associated with the work being undertaken.
- Review their WHS management system periodically to ensure systems and processes are up to date with current legislation, remain suitable for the work being undertaken and are being adhered to by workers.

4.2 Workers

Workers provided by the Contractor under the contract or agreement must comply with all reasonable WHS management framework put in place by the Contractor and/or Council. Specific WHS responsibilities for all workers are details within WHS104 WHS Responsibilities.

5 WHS REQUIREMENTS FOR MEDIUM RISK WORK

The following documents must be included as part of the tender / quotation submission for the Contractor to be adequately assessed:

1. Execution of Proforma 1 – WHS Expectations and Responsibilities
2. A copy of a risk assessment (e.g. Safe Work Method Statement, Job Risk Analysis, Risk Register) for a similar activity undertaken within the last 12 months

Proforma 1
WHS Expectations and Responsibilities Agreement
Medium Risk Work

If engaged, the undersigned agrees to comply with the work health and safety (WHS) requirements listed below and the associated responsibilities detailed in Section 4 of WHS702 Contractor WHS Requirements – Medium Risk Work when working for or on behalf of Mid-Western Regional Council (Council).

- Comply with the WHS Act 2011, WHS Regulation 2017 and associated WHS legislation relating to the work undertaken
- Comply with Councils WHS Management System (WHSMS), including any Council supplied Project Specific Safety Management Plans (PSSMPs), in addition to their own WHS framework that may be in place
- Cooperate with any reasonable request from Council in relation to WHS management and/or corrective actions
- Ensure all workers used to complete the contracted work have undertaken Councils Contractor WHS Induction prior to commencing work

The undersigned confirms that the following WHS documents have been submitted for review as part of the tender/quotation submission:

Item No.	Submitted documents	Confirmation
1	Signed acceptance of Proforma 1 - WHS Expectations and Responsibilities (this form)	☐ Yes ☐ No
2	A copy of a risk assessment (e.g. Safe Work Method Statement, Job Risk Analysis, Risk Register) for a similar activity undertaken within the last 12 months)	☐ Yes ☐ No

Agreement Execution			
Contractor (Company) Name			
Authorised Delegate Name			
Authorised Delegate Position			
Authorised Delegate Signature		Date	